

STATE OF NEW YORK

509--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, R. CARROLL, HEVESI, STECK, McDONALD, KAY, WIEDER, YEGER, EICHENSTEIN, BERGER, LEVENBERG, OTIS, ROZIC, ROSENTHAL, LAVINE, LUNSFORD, STERN, JENSEN, DINOWITZ -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law and the education law, in relation to authorizing camp employees to administer medications and treatment to children under certain circumstances

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1394 of the public health law is amended by adding
2 a new subdivision 10 to read as follows:

3 10. Each children's overnight, summer day, or traveling summer day
4 camp, may permit employees of such camp to administer, with specific
5 authorization and consent from a child's parent or guardian, over-the-
6 counter medications pursuant to a patient-specific order issued by the
7 camp health director or a physician, nurse practitioner, or physician
8 assistant employed or contracted with the camp to provide health
9 services or the child's healthcare professional, within their lawful
10 scope of practice, including but not limited to for the purposes of pain
11 relief or the treatment of anaphylaxis and motion sickness or
12 prescription medications for the treatment of emergency conditions
13 including but not limited to asthma, anaphylaxis, and oral or nasal
14 spray seizure medications. Such medications shall be approved by the
15 commissioner and administered pursuant to section sixty-nine hundred
16 eight of the education law and in accordance with the rules and regu-
17 lations promulgated by the commissioner, in consultation with the
18 commissioner of education.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00934-06-6

§ 2. Paragraph a of subdivision 1 of section 6908 of the education law is amended by adding a new subparagraph (vi) to read as follows:

(vi) the administration of medications or treatment by employees of a children's overnight camp, summer day camp and traveling summer day camp where such employees have been given specific authorization by the camp's health director, including via audio or video communications, to administer such medications or treatments to a specific child, are acting under the direction and authority of a parent of a child, legal guardian, legal custodian, or an adult in whose care a child has been entrusted and who have been authorized by the parent or guardian to consent to health care for the child and in compliance with regulations promulgated by the department of health pertaining to the administration of medications and treatment;

§ 3. This act shall take effect on the one hundred eightieth day after it shall have become a law.